applicant, a parent or a grandparent figured in the roll of the previous SIR, along with the constituency, polling booth and serial number. The field was not marked mandatory, yet the form could not be submitted without it. Curiously, however, the downloadable version of the form had no such section.

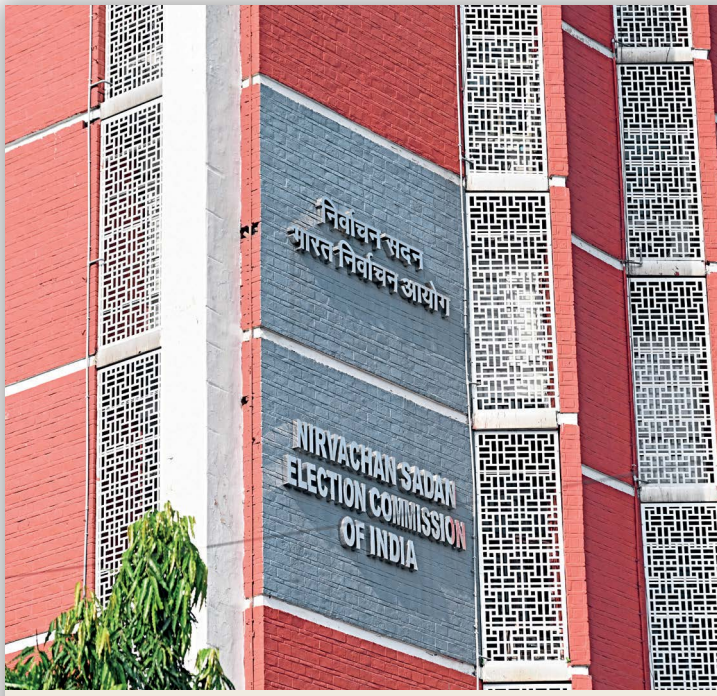
Joshi had reportedly warned in May that a form prescribed under the 1960 Rules could not be altered through an SIR instruction. On August 13, Sandhu called the change "unauthorised and illegal" and demanded its removal. ECI sources insist the statutory paper form was untouched and the online change merely integrated two existing requirements into a single digital process, sparing applicants a second e-signature. Besides, the additional declaration form was added as an annexure to Form 6 during the Bihar SIR and, on May 27, the SC upheld the legality of SIR and its documentation framework. Critics counter that, in upholding the SIR framework, the SC never decided whether the ECI could make an additional requirement effectively compulsory through software. "Asking an applicant whether their parents or grandparents figured in an earlier SIR roll is not a procedural or formatting change; it is a substantive addition to the registration requirement," says jurist and five-term MP Abhishek Manu Singhvi.

Lineage data matters because of the timing. The Census, delayed since 2021, is under way, with house-listing this year and population enumeration, including caste, slated to begin on March 1, 2027. The constitutional freeze on redrawing constituencies and reallocating Lok Sabha seats among states, extended by the 84th Amendment in 2001, ends with the first Census after 2026. The one-third quota for women in legislatures, passed in 2023, takes effect post delimitation. Delimitation is based on Census population, not electoral rolls. But the Opposition fears that rolls re-verified via family lineage—with flagged and deleted voters concentrated in particular communities and regions—could give the State a profile of the electorate and shape how new constituencies are drawn and reserved, and who is counted as a voter in them. The ECI dismisses this as conjecture. The problem? The filters generating that profile were never made public. ECI sources say mapping was introduced to reduce the burden of producing documents. Since many Indians may not have the required papers, they can instead establish a family link to an earlier electoral roll and be included in the new roll without submitting those documents. "Mapping is not mandatory," says an ECI source.

Crisis 3: Control by software

The third crisis runs through ECINet, the commission's integrated, one-stop digital platform. Launched on January 22, it merged more than 40 ECI apps and portals into a single platform, with its electoral roll module handling name addition, deletion and correction. But the law vests those powers in the Electoral Registration Officer (ERO) of each constituency, not in ECI headquarters. In a note of dissent, Joshi warned of a "gradual centralisation of the electoral roll database" and proposed an independent technical audit to certify that only statutory officers had credentials to alter entries. Sandhu recorded that state officials lacked "proper and complete access" to the portal and argued that Seema Khanna, director general, IT, had no legal authority to restrict statutory officers. On September 24, the Maharashtra Chief Electoral Officer asked the ECI to modify ECINet so that EROs could exercise their statutory discretion to resolve logical discrepancies, exempt vulnerable voters from hearings and accept a wider range of documents. The request echoed the objections raised by the two ECs that centrally controlled software was constraining powers legally vested in field-level officers.

"Technology cannot rewrite a statute," asserts S.Y. Quraishi, former CEC. "A computer program cannot overrule a statutory officer." In Goa, 97 voters flagged for logical discrepancies were found eligible by EROs after hearings and document checks. Rule 21 of the 1960 Rules allows an ERO to include names omitted through error, while Rule 22 requires such decisions to be incorporated before the final roll is published. An ECI deputy election commissioner also recorded that the IT system could not obstruct that authority. Yet between February 11 and 17, the Goa Chief Electoral Officer's office sent eight requests for a software facility to implement the decisions. It was not enabled before the final roll was published on February





"The SC judgment does not authorise the ECI to introduce substantive or wide-ranging qualification requirements by unilaterally changing Form 6"

—ABHISHEK M. SINGHVI, *Jurist & five-term MP*